

FHS Ethics: Deontology

Readings

Required readings:

- Kamm, F.M. 2013. "Nonconsequentialism." In *The Blackwell Guide to Ethical Theory, Second Edition*, edited by Hugh LaFollette and Ingmar Persson, 261-286. Oxford: Blackwell.
- Korsgaard, Christine. 1996. *Creating the Kingdom of Ends*. Cambridge: Cambridge University Press. pp. 1-27.
- Parfit, Derek. 2011. *On What Matters, Volume One*. Oxford: Oxford University Press. Chapters 12 ('Universal Laws') and 13 ('What if Everyone Did That?').

Optional readings:

- Kant, Immanuel. 1785/2018. *Groundwork of the Metaphysics of Morals* (trans. Allen W. Wood). New Haven: Yale University Press.
- Hill, Thomas E. 2007. "Kantian Normative Ethics." In *The Oxford Handbook of Ethical Theory*, edited by David Copp, 480–514. Oxford: Oxford University Press.
- McNaughton, David, and Piers Rawling. 2007. "Deontology." In *Oxford Handbook of Ethical Theory*, edited by David Copp, 424-458. Oxford: Oxford University Press.

Past Year Questions

Either

(a) Can Kant explain why murder for its own sake is wrong according to the first formulation of the categorical imperative, the so-called formula of universal law?

Or

(b) Can the second formulation of the categorical imperative, the so-called formula of humanity, offer a plausible explanation of duties of aid? [2024 I]

Either

(a) 'If you are not motivated by duty, whether you act as you should is an accident. No one is morally praiseworthy, though, for accidentally doing the right thing. So acting from the motive of duty is necessary for morally praiseworthy action.' Is that so?

Or

(b) Is one of the formulations of the categorical imperative more plausible than the others? Why? [2024 II]

Either

(a) Must Kantians think that a morally good person performs even merely permissible acts out of duty? Is it a problem if they must?

Or

(b) Does Kant have a good argument for the claim that humans are ends in themselves? Does he need one? [2023]

Either

(a) Can objections to Kant's account of moral worth be addressed adequately by distinguishing between ways in which a person might be motivated by duty?

Or

(b) 'How could exercising the freedom to choose...represent the renunciation of freedom? It could if this were analogous to the free choice of slavery. But how similar would [a] villain's choice be to the choice of slavery?' (DAVID WIGGINS) Do Kantians have a good response to these questions? [2022]

'In the end, Kant's ethics gives obligation to our loved ones only derivative value at best.' How significant an objection to Kant's ethics is this? [2021]

Part I: Kantian Ethics and formulations of the Categorical Imperative

Overview of Kantian Ethics and his formulations

Interpretation of Kant's Categorical Imperative

Hill, Thomas E. 2007. "Kantian Normative Ethics." In *The Oxford Handbook of Ethical Theory*, edited by David Copp, 480–514. Oxford: Oxford University Press.

Categorical Imperative 1: Formulas of Universal Laws

- FUL: "I ought never to act in such a way that I could not also will that my maxim should become a universal law"
- FULN: Act as though the maxim of your action were to become by your will a universal law of nature
- Identifying the maxim
 - Policy statements: In conditions C, I shall do X in order to E from motive M
 - Some maxims are morally bad, some good etc and Kant offers the universal law formulas as a way of testing whether acting on the proposed maxim would be wrong
 - Should not include details that are irrelevant to our policy, purpose, and reasons for acting as we propose to do so
- Two ways of failure
 - Maxims that cannot be conceived as universal law without contradiction: we must be able to conceive our maxim as a universal law without contradiction
 - E.g. Making false promises to borrow money: no one would trust promises which would undermine the goal of borrowing money
 - Maxims that cannot be consistently willed as universal law: we must be able to will our maxim as a universal law
 - E.g. While technically possible for everyone to refuse help, such a maxim contradicts the rational will to achieve one's goals. We often need others' assistance to succeed, so universalizing the refusal of all help would be irrational.
- Even though Kant presents these requirements as tests of the permissibility of acting on a proposed maxim, they could lead us to the conclusion that we have a positive duty to act in certain ways
 - If we wonder whether it is also a duty to act on a given permissible maxim, **then we must consider what our maxim would be if we chose to do otherwise** → if we fail the tests, then it is wrong to act on it
 - **Whenever the only alternative to a permissible maxim fails the test, it is a positive duty to act on the permissible maxim i.e. an obligation**
- Interpretations of FUL and FULN: do they propose exactly the same tests
 - Reading 1: FUL is not a practical action-guide by itself but expresses an idea that can be applied to human conditions only when "universal law" is replaced with the more specific concept of "universal law of nature"

- Reading 2: FULN simply specifies what was implicitly intended in FUL, and so the two formulas offer exactly the same test
- Reading 3: FUL and FULN offer slightly different tests, where the first asks us whether we can will that everyone freely choose to act on our maxims, and the second asks whether we could consistently conceive and will our maxims as teleological laws in a harmonious system of natural purpose
- Hill's view: FUL asks us whether we can consistently conceive and will our maxim as permissible for everyone to act on and FULN asks us whether we can consistently conceive and (if we had the power) will that, as if by a law of nature, everyone adopts and acts on them
- Interpretations of consistently conceiving (first test)
 - Kant doesn't seem to just think about logical impossibility, and his examples suggest that they be ruled out if, assuming some general background facts about the human condition, it is logically impossible for everyone to act on them
 - I.e. Breaking a promise fails the test only since it assumes that everyone would no longer trust promises which would undermine the concept of promising itself if universalised
 - More promising suggestion: maxims cannot be conceived as universal laws if it is logically impossible to will simultaneously the following set of intentions: (1) to act on the maxim, (2) to bring it about (if one had the power) that everyone else act on the maxim, and (3) the normal foreseeable consequences of everyone's acting on that maxim
 - Korsgaard: (our) action would become ineffectual for (our) purpose if everyone (tried to) use it for that purpose
- Interpretations of consistently willing (second test)
 - Implausible reading: any contingent inability to will our maxims as universal law means that we would be wrong to act on them, as all sorts of morally irrelevant factors would rule out actions that are quite innocent
 - If there were not enough of some trivial commercial product for everyone to buy it, then it is wrong to buy it → obviously wrong
 - Standards of logical consistency and coherence among one's intentions is unlikely by itself to generate appropriate results → extremely controversial what the standards for rational willing are
- Challenges
 - Intuitively unacceptable conclusions: both overly broad (accepting maxims we would deem as impermissible) and narrow (condemning maxims that we consider innocent)
 - We might revise the description of the maxim but there is no principled way to tell before applying the test what the "correct" description should be and if we need to understand the right

conclusion prior to finding the best statement of the maxim, then we are not being guided by the formulas

- Problem of Obligations: we need to identify and test all the many maxims that we might follow if we did not do as the alleged positive duty would prescribe
- Explanatory problem: universalisability does not seem to reflect what is most central to moral deliberation i.e. they do not adequately explain why acting on those maxims is wrong
 - What is wrong with slavery cannot merely be that it is impossible for everyone to act on the maxim of a would-be slave owner

Categorical Imperative 2: Humans as ends in themselves

- Act in such a way that you would treat humanity, whether in your own person or in any other person, always at the same time as an end, never merely as a means
 - Persons are ends-in-themselves, and that humanity, or rational nature, in persons is an end-in-itself
 - An end in Kant's broad sense is "what serves the will as the objective ground of its self-determining" i.e. that it gives us a reason to do or refrain from doing various things
 - An end-in-itself is necessarily an end for every rational being: its existence is an objective reason for doing or refraining from certain acts, independently of our inclinations
 - Persons, conceived as members of a kingdom of ends, have a dignity, which is grounded in their autonomy of will: dignity is an "unconditional and incomparable worth", above all price and "without equivalent"
 - Cannot be exchanged for anything with merely conditional value
 - Negatively, it is a value against which we must never act, and yet positively, we take the conception of humanity as an end-in-itself fully to heart only if we try to make the (permissible) ends of others our own
- Interpretation of the second categorical imperative
 - Does the formula have any independent action-guiding content i.e. does it have substantive, normative (perhaps irreducibly so) notions in it?
 - I.e. our test for treating humanity as an end cannot simply be that we could will the maxim of such treatment as universal law if we were to think that it does have such independent content
 - Also, if it meant no more than "respect persons' rights and give them moral consideration due to human beings" then it requires an independent account of rights and due consideration

- Some think that the formula offers nothing substantial beyond the formula of universal law while others take the principle as the first principle of morals from which all others are derivable
- Most take an intermediate position that it simply adds significantly to our understanding of Kant's basic criteria or procedures for deciding what is right
 - Some take the key to be a relatively substantive idea of human dignity while others construe the formula as an imperative to respect persons and lastly on whether our purposes can be shared by those affected by our acts
- Whether our purposes can be shared by those affected by our acts: draws heavily from Kant's claim that we must treat ends-in-themselves as "beings who must themselves be able to share in" our end in acting
 - Not that we may do something to others only if they actually share our purpose in doing it: a criminal could object to the just sentence a judge proposes
 - Rather, before acting in ways that seriously affect others, we must look at our proposed act and purpose from the point of view of a reasonable recipient → should not act as we propose if the recipient of our act could not will for us so to act i.e. could not endorse our so acting without contravening appropriate rational standards for endorsing others' treatment of oneself
 - In other words, both the universal law formulas and humanity formulas asks us to assess whether a person (reasonably) could endorse a maxim as a general policy: the FULs direct our perspective to the reasonable agent while the humanity formulas to the reasonable recipient
- Dignity: dignity is treated as a substantive value and a high priority of preservation
 - Kantian consequentialism: maximise preservation of dignity
 - Traditional readings: dignity **has the status of inviolability, not a value that can be quantified but a worth to be respected, esteemed, honoured in all our actions**
 - Donagan: the highest moral principle is his version of the humanity formula "it is impermissible not to respect every human being, oneself or any other, as a rational creature" → we have common understanding of the phrase "respect" i.e. an irreducibly normative concept
 - Stringent requirements regarding promise keeping, murder, use of force etc – contain qualifications but are not merely pro tanto duties and we must never use means that violate the principles

- Denies negative responsibility
- Wood: all of Kant's formulas are to be taken together as a system and that the humanity formula serves as a crucial guide and is superior to the FULs. We may also derive deductively from the humanity formula when it is understood as a principle of respect for human dignity many specific-act guiding principles
 - What constitutes respecting dignity are empirical and hermeneutical premises and not independent moral principles
 - Since the basic requirement is always to respect humanity in persons, we need intermediate premises specifying the meaning expressed by acts in various circumstances: false promises expresses disrespect for another person
 - No algorithms or decision procedures for interpreting the expressive meaning of acts but we can give reasons for our judgements about this
- Challenges
 - Indeterminacy: cannot agree on what specifically "respecting a person as rational" implies for a wide range of cases especially if the formula is taken to be self standing
 - Too local: we often treat the formula as primarily about simple, self-contained interpersonal exchanges, and miss relevant moral considerations that arise from larger context i.e. how to best express equal respect for all persons
 - We may accept policies that allow exceptions to the duty of truth-telling for more extensive occasions: exclusive focus on what is intuitively respectful in the narrow context of person-to-person interactions leads readily to apparent dilemmas such that all our options are forbidden
 - But can make progress if we treat the formula as an evaluative attitude mandated first and foremost for our deliberations about general moral principles and policies in the light of the many complex factors that may be relevant
 - Too thick: expresses too thick, substantive and controversial values that may not be acceptable by everyone and has the burden of defending why some apparently reasonable common moral judgements are wrong
 - Donagan's inflexible principles would require in emergency situations refusal to protect lives and other Kantian values by extraordinary means that reasonable persons may rightly approve

Categorical Imperative 3: Kingdom of Ends and the Legislature

- Formula of Autonomy: the idea of the will of every rational being as a will that legislates universal law

- We must always act in ways compatible with this idea
- Rational law giving is not motivated by inclinations and desires (but not lacking motivating dispositions totally) which are contingent ends they have as particular individuals, but by objective ends that are rationally necessary i.e. “end-in-itself” or humanity or rational nature
 - Reason is not inert but can be practical
- Must take into account the conditions under which the laws will be applied: cannot be ignorant about general facts, even if meant to express objective principles the rationality of which does not depend on contingent human conditions
- Autonomy implies that the legislators’ laws are in a sense self imposed: the laws that are given to themselves are that which rational legislators (who are committed to basic standards of rational agency i.e. from the CI and principles necessary to rationally consistent choice) would adopt for specified conditions → understood as given to themselves by themselves
- Kingdom of Ends formula: All maxims which stem from autonomous lawgiving are to harmonise with a possible kingdom of ends as with a kingdom of nature”
 - A kingdom of ends is “a systematic union of different rational beings under common laws” i.e. the ideal analogue of a political state in which rational members make all the laws to which they are subject; members have private ends but in conceiving the kingdom of ends we abstract from their contents as well as from other personal differences among members
 - Extension of the idea of autonomy: human members are subject to obligation because though having contrary inclinations they too are committed to the same rational principles
 - Kant suggests this is the most complete determination of moral requirements on maxims
- Interpretative issues
 - How do members in the kingdom make laws: Kant’s metaphor suggests an ideal legislature in which all citizens are free and rational legislators are bound by the laws that they make → as legislatures, they share the same rational disposition and values, abstracted from personal differences and private ends
 - Like Rawls’ veil of ignorance
 - However, some interpretations suggest otherwise: imagine a possible world in which everyone conforms to the universal law formula, acting only on maxims that they can will as universal law. The outcome, we suppose, would be a harmonious system of ends, with no one being treated as a mere means and everyone having a chance to pursue their permissible ends without undue interference

- No legislature so there is no need to ignore personal differences to ensure impartiality
 - Laws of the kingdom would be identified as maxims that have been tested and found certain ones that could not be willed as a universal law
- Interpretation as legislative model for deliberation about moral rules
 - We construe the kingdom of ends as an idealised model of moral legislation
 - We distinguish fundamental Kantian values from less basic rules and principles concerned with particular areas of moral life
 - Former (from the categorical imperatives): we try and construct a conception of the perspective from which we should reflect more about specific rules and principles, how to articulate them and what qualifications they should contain → more basic values as constituting the essentials of an ideal point of view for trying to work out with others what moral demands and limits should be included in our principles
 - The Kantian legislative perspective suggested by the kingdom of ends formula combines ideas from Kant's other formulas
 - As legislators, we deliberate by assessing whether we can reasonably endorse various general policies, considered as principles for everyone → we need not identify the precise maxim of each act but review systematically sets of permissive, prohibitive and obligatory principles together
 - Legislators who acknowledge each other as ends in themselves would have to deliberate with the constraints and values, whatever these may be, inherent in the idea of humanity as end-in-itself → the value of humanity as an end motivates them to place a high priority of member's survival, development and opportunities to live as rational agents
 - The idea of autonomy is reflected in the stipulation that the legislators are subject to no laws or principles other than those they themselves rationally endorse
- Challenges
 - We need to specify the presupposed standards of "rational" and "reasonable" willing and the appropriate degree and kind of "abstracting from personal differences"

Kant's motivation

Korsgaard, Christine. 1996. *Creating the Kingdom of Ends*. Cambridge: Cambridge University Press. pp. 1-27.

- Context of the Enlightenment: Dominated by Rationalism that emerged from the ideas of Leibniz
 - Wolff took mathematics as a model and believed that philosophy should be a universal deductive system, with every conclusion derived by syllogistic reasoning from necessary premises → principles of contradiction and sufficient reasoning
 - Existence of God can be proved by ontological, cosmological and teleological arguments
 - Kant rejected Wolff as the “greatest of all the dogmatic philosophers”
 - Status of pure concepts in metaphysics and rational determinability of ends and imperatives in ethics: Kant initially denied that metaphysics has the same method as mathematics since concepts of metaphysics cannot be established synthetically the way the concepts of mathematics can
 - Eventually, Kant views mature into that it is speculative metaphysics which will be left unfounded, and practical philosophy that will be set on a firm basis
- Critique of Pure Reason: overthrew the dogmatic metaphysics of the Leibniz-Wolffian philosophy in order to circumvent Hume’s skepticism about a priori reasoning in philosophy
 - Kant and Hume agree that metaphysical principles such as “every event has a cause” are not analytic
 - In an analytic judgement the predicate is contained in the concept of the subject; a judgement that is not analytic is synthetic
 - If metaphysical principles are synthetic, they must be demonstrated
 - In Critique of Pure Reason, Kant provides the needed demonstration or deduction of the synthetic a priori principles of understanding → our objects must conform to our knowledge, not the other way around
 - Kant’s deduction only licenses our use of the principles of pure understanding for objects as we experience them i.e. “phenomena” and not “noumena”
 - So, he destroyed traditional proofs of God and freedom → these things are beyond the limits of theoretical understanding
 - Theoretical reason, in its search for the unconditioned – for the completeness of its account of things – compels us to ask whether these things are real
 - Human reason is compelled by its nature to ask questions it is unable to answer
- Ethics
 - The moral law itself must be a synthetic a priori principle since “The formula in which all obligation is expressed is: One ought to do this or that and leave the other” and “every ought expresses a necessity of the action”

- But an ought statement cannot be derived from experience, which merely tells us how things are, and does not provide the required necessity → must be known a priori
 - But the moral ought cannot be established analytically
- Hypothetical Imperatives – principles which instruct us to do certain actions if we want certain ends – are analytic
 - While their material content comes from a law of nature telling us that a certain action is a means to a certain end, the necessity expressed in the “ought” comes from a principle that is analytic for the will: “Whoever wills the end, so far as reason has decisive influence on his action, wills also the indispensably necessary means to it that lie in his power. This proposition, in what concerns the will, is analytical; for in willing an object as my effect, my causality as an acting cause, i.e. the use of the means, is already thought, and the imperative derives the concept of necessary actions to this end from the concept of willing this end
- But moral ought is not expressed by a hypothetical imperative: our duties hold for us regardless of what we want → a moral rule does not say “do this if you want that”
- Freedom of will is important to Kant because it provides both the content of morality and its motive: Kant will ask “how would a free will with nothing constraining or guiding it determine its actions?” and he will answer is “by the moral law” → answers the question posed by the antimony although only from a practical point of view – for reason says that there must be an uncaused cause in the noumenal world if an unconditional explanation of the phenomena can be given
 - Antimony of freedom: in the phenomenal world, because it is temporal and causality is temporal succession according to a rule, every event has a cause, and there can be no freedom. But the noumenal world does not exist in time, and a spontaneous causality is possible, though not knowable in it
 - Speculative theoretical reason, however, cannot tell us what this cause would be
 - Practical reason, in providing us with the moral law
- Universal Law and Humanity: Groundwork of the Metaphysics of Morals
 - Establish a supreme principle of morality
 - Kant’s method in the first section is analytic: he uses examples in order to analyse our ordinary conception of a good will and to arrive at a formulation of the principle on which such a will acts → a good will is easily distinguished from one that acts from an indirect inclination, doing the right thing merely

as a means to some ulterior end, a “selfish purpose” → difficulty is in distinguishing a good will from a will that has a “direct inclination”

- For the naturally sympathetic person and the unsympathetic but beneficent person both have the same purpose, helping others, although one has this purpose because of a direct inclination, and the other has it from duty → both contrast with the selfish person who does the right thing for ulterior purposes
- Duty then is not a matter of having certain purposes → if we remove all purpose from the will, what is left is the formal principle of the will and the formal principle of duty is just that it is duty – that it is law
- The essential character of law is universality → the person who acts from duty attends to the universality of his/her principle
- Kant’s method in the second section by investigation of rational action: “Everything in nature works according to laws. Only a rational being has the capacity of acting according to the conception of laws, that is, according to principles”
 - The principle you give to yourself, that you act on, Kant calls a “maxim”: your maxim must contain your reason for action → it must say what you’re going to do, and why
 - If your maxim is one that is rational to act on, it must meet certain tests (must be a means to your end, and (unless morally required) your end be consistent with your happiness); but there is also an imperative that tells us what we must do regardless of our private purposes → moral or categorical imperative because it is independent of all material will
 - “There is nothing remaining in it except the universality of law as such to which the maxim of the action should conform”
 - “Act only according to that maxim by which you can at the same time will that it should become a universal law”
- To will your maxim into a universal law is to will it without contradiction → any agent who applies the contradiction test should get the same result, regardless of his/her private interests
 - Contradiction may arise in two ways: (i) if the maxim cannot even be conceived as a law of nature without contradiction, it is contrary to strict or perfect duty, (ii) if it can be conceived but could not be willed without contradiction, it is contrary to broad or imperfect duty
- First kind: man whose maxim is to make a false promise in order to get some money, which he will be unable to repay → if we imagine a world in which this is the standard procedure, then no one can get money since promises lose their validity

- Efficacy of lying to get money depends on it being an exceptional way to get money
 - This is where we get the contradiction: the lying promiser who attempts to will the universalisation of his maxim wills the denial of the analytical principle (since this is a hypothetical imperative) on which he himself proposes to act, and the denial of an analytical principle on which he promises to act, and the denial of an analytical principle is a contradiction
- Second Kind: when you attempt to will the universalisation of some policy which would undermine the will's efficacy more generally
 - If you try to will a universal policy of neglecting talents and powers, you contradict your will because these serve you for "all sorts of possible purposes" → if you try to will a universal policy of not helping others, you contradict your will because you yourself, as a finite rational being, are often in need of assistance
 - Kant is not offering an egoistic reason for an actual agreement → a world without assistance is a thought experiment to determine whether you can will your maxim as a universal law → the duty of helping others holds even if you do not in fact get any assistance from anyone else, or have any hope that you will
- Kant has only told us what the categorical imperative is if there is one
- Only thing that has conditional value if its value depends on whether certain conditions hold: a thing has conditional value if its value depends on whether certain conditions hold
 - The value of the means depends on the value of the end it serves; and the value of an object of desire depends on whether satisfying the desire will really contribute to the person's happiness
- Categories of Duty: the metaphysics of morals
 - Metaphysical Principles of Justice: outer duties that you have a duty not to interfere with the freedom and property of another is that the other is authorised to use coercion against you if you do
 - Metaphysical Principles of Virtue: inner duties
 - A duty of virtue: involves the free adoption of some end which pure practical reason directs → duties of virtue arise from the Supreme Principle of the Doctrine of Virtue: "Act according to a maxim whose ends are such that it can be a universal law that everyone have these end"
 - Unlike Universal Principle of Justice, this principle is synthetic: since it directs the adoption of ends and so concerns our motives, it must be established that it applies to the human will → deduced from the possibility of pure practical reason

- Duties of virtue are of broad obligation, while duties of justice are of strict obligation: duties of justice require particular actions or omissions, and the obligation is strict because it can be discharged
 - Duties of virtue tell you to adopt and pursue certain ends: such a duty cannot be simply discharged, for the ends in questions cannot be completely achieved
- Four categories of duties of virtue: (i) perfect duties to oneself, to preserve and respect the humanity in one's own person, (ii) imperfect duties to oneself, to develop one's humanity, intellectually and physically; (iii) duties of love for others, to promote their happiness; (iv) duties of respect for others, including respect for their rights
- Autonomy and the Kingdom of Ends
 - Rational Beings are determiners of ends – the one who set values on things → so a rational being must value rational nature as an end in itself; and it is with this end in view that we act only on maxims which could be universal laws
 - Two ways of being motivated: autonomously and heteronomously
 - Autonomous motivation: you act on a law you give yourself
 - Heteronomous motivation: the law you imposed on you is by means of a sanction → you are provided by an interest in acting on it
 - Kant claims that the idea of autonomy does determine the content of the principle that is autonomously adopted, and that the categorical imperative is in a special way the principle of autonomy
 - Heteronomous motivation can only be associated with hypothetical imperatives
 - When imperative is hypothetical, we can always either perform the action or give up the interest → to explain obligation, we need an imperative that binds us unconditionally → but this means that moral motivation, if it exists, must be autonomous
 - There can only be one reason why human beings must obey the moral law, and that is that we give the law to ourselves
 - The human will must be seen as universally legislative → each of us has a will that makes laws for itself as if for everyone → we form a moral community in a Kingdom of Ends
 - A systematic union of different rational beings through common laws, a republic of all rational beings
 - Freedom is perfectly realised for the citizens have made their own laws and the laws they have made are laws of freedom → a whole of rational beings as ends in themselves as well as of the particular ends which each may set for himself

- Kingdom of Ends provides us with a way of representing the sense in which moral laws are laws of autonomy
 - Suppose all rational beings were really to form a Kingdom of Ends → we would choose laws that preserved the freedom of each according to a universal law
 - When we do obey moral laws, we are then autonomous and free; it is only because we are imperfectly rational and subject to desire that morality appears to us as constraint – as duty
- Kant's third formulation: we are always to act as if we were legislating for the Kingdom of Ends
- Foundation of Morality
 - Categorical Imperative is synthetic: not contained in the concept of a rational will → when a proposition is synthetic, its two terms must be linked through their union with a third in which both of them are to be found i.e. deduced
 - This third term, in Kant's view, is provided by the positive conception of the freedom of the will → Kant argues that (i) a rational will must be regarded as a free will, and (ii) a free will is a will under moral law
 - Therefore, a rational will is a will under moral law

On Universalisability and Objections

Parfit, Derek. 2011. *On What Matters, Volume One*. Oxford: Oxford University Press.

Chapters 12 ('Universal Laws') and 13 ('What if Everyone Did That?').

The Central Issue for Parfit is to analyse if the notion of universalisation bears on morality at all, and extends from Kant pretty independently

Universal Laws

- Impossibility Formula: It is wrong to act on any maxim that could not be a universal law
- Different interpretations
 - A: it is wrong to act on any maxim if we could not all be permitted to act upon it
 - Kant never appeals to A
 - Parfit: A is not a useful claim
 - B: it is wrong to act on any maxim that we could not all accept, in the sense of dedication to act upon it
 - Unreliable: if B condemned acting on any maxim that it would be inconceivable, or logically impossible, for all of us to accept, this formula would fail to condemn most wrong acts → "Deceive or coerce people whenever it would benefit me"
 - Such worlds might be causally impossible since some good people are psychologically unable to accept some bad maxims; but there are bad people unable to accept some good maxims

- If B appeals to such causal impossibility, this formula mistakenly condemns acting on good maxims
 - Must appeal to some other kind of impossibility → but we have no reason to believe that whether maxims are good or bad depend on mutual acceptance
- C: It is wrong to act on some maxim if it would be impossible for everyone to act upon it
 - Everyone here refers only to people to whom some maxim applies → “Care for my children” applies only to parents
 - C condemns many morally required or permissible acts → there are many good maxims on which some people could not act, because they do not have the opportunity or ability to act in these ways → some parents cannot care for their children, because they are in prison, or are mentally ill but caring for our children is not wrong
 - Reply: C might condemn acting on any maxim that could not be acted on by everyone who has both the opportunity and ability to act upon this → but no maxim would fail this test
- D: It is wrong to act on some maxim if it would be impossible for everyone who could act upon it to act successfully, in the sense that they would achieve their aims
 - No better → many maxims on which it would be permissible or good to act though we could not all successfully act upon them: “become a doctor”
- E: It is wrong to act on any maxim that could not be a universal law
 - Kant’s stated formula
- F: It is wrong to act on any maxim of which it is true that, if everyone accepted and acted on this maxim, or everyone believed that it was permissible to act upon it, that would make it impossible for anyone successfully to act upon it
 - Parfit says this is Kant’s actual formula
- Can F help us decide which acts are wrong?
 - “Kill or injure other people when that would benefit me” → Herman points out, if we all accepted and acted on this maxim, that would not make it impossible for any such act to succeed, so F doesn’t condemn such acts nor does F condemn self-interested coercion
 - Kant is wrong to think that “Lie when it benefits me” is impossible because even if we were all self-interested liars, many of our statements would be true since we have such an incentive
 - According to Kant, theft is wrong because stealing is self-defeating: mine and thine would be altogether at an end
- Kant’s actual formula fails → but does it fail for everything?

- Consider someone who makes a lying promise so that he can borrow money that he does not intend to repay: make lying promises when that would benefit me
- Kant seems right to claim that, in such a world, no one would be able to benefit themselves by making any lying promise → not only would such promises not be believed; the social practice of morally motivated, trust-involving promises would have ceased to exist
- One part of Kant's formula
 - G: it is wrong to act on any maxim of which it is true that, if everyone believed such acts to be permissible, that would make it impossible for any such act to succeed
 - But this condemns right acts: "Tell lies to the police when that would save some Jewish person's life" during World War II in Germany → this would fail if everyone did that because the police would know you are telling a lie
 - Kant argues that telling a lie to a would-be murderer is wrong
 - So G is unacceptable
- Kant's formula is also in part
 - H: it is wrong to act on any maxim whose being universally accepted and acted upon would make it impossible for anyone successfully to act upon it
 - Some claim that this condemns acting on several good maxims such as "Refuse to accept bribes" or "Give generously to the poor"
 - No one would accept bribes and that there would cease to be any poor people
 - Korsgaard: when people act on the maxim of giving to the poor, their aim is to abolish poverty → H therefore doesn't condemn people's acts, because by giving to the poor, these people would achieve their aim
 - But this claim doesn't apply to all → some rich people want to be admired and not to abolish poverty
- Weaker version of H:
 - I: it is wrong to act on any maxim whose being successfully acted on by some people would prevent some other people from successfully acting on it
 - Condemns deception and coercion since those who deceive or coerce thereby 'guarantee that their victims cannot act on the maxims they act on'
 - But this claim is false since of those who have been deceived or coerced, most can deceive or coerce other people
 - Mistakenly condemns many good or morally permissible acts: there are many good or permissible maxims of which it is true that, if some people successfully acted on them, that would prevent some other people from doing the same
- Korsgaard: Kant forbids acts whose success 'depends upon their being exceptional'

- This test reveals unfairness in the act → but how is this true? Some poor people get their food by searching through the rubbish that others throw away, and this method must be exceptional, but it is not wrong or unfair
- Kant's Universal Law: it is wrong to act on maxims that we could not will to be universal laws
 - When maxims fail this test, we have unstrict duties not to act upon them → such duties are **unstrict in the sense that we are sometimes morally permitted to act on such maxims**
 - Parfit thinks that we should ignore this remark: Kant claims that our strict duties can be derived from his Impossibility Formula which is not true
 - We should ask whether the **Formula of Universal Law can do better by implying that some kinds of act are always wrong**
- Two senses of whether we could will it to be true that some maxim is a universal law
 - Whether we could consistently will this to be true → whether our will would conflict with itself
 - Whether we could rationally will that maxim → Parfit thinks that Kant's formula is more likely to succeed in this latter sense
- The second sense of rational will results in: it is wrong for us to act on some maxim unless we could rationally will it to be true that everyone accepts this maxim, and acts upon it when they can
 - Permissibility Formula: it is wrong for us to act on some maxim unless we could rationally will it to be true that everyone is morally permitted to act on this maxim
 - Parfit: Kant assumes that if everyone were permitted to act on some maxim, at least some people would be likely to act upon it → effect not produced by people being permitted to act, but believing that such acts are permitted
 - Moral Belief Formula: it is wrong for us to act on some maxim unless we could rationally will it to be true that everyone believes that such acts are morally permitted
 - We need to appeal to some beliefs about rationality and reasons: we might want to appeal to true beliefs about rationality and reasons i.e. our own beliefs
 - But not to our beliefs about which acts are wrong (Parfit calls these deontic beliefs) → circularity
 - Deontic belief restriction: we must make no appeal to deontic beliefs in generating
 - Also, we should not appeal to beliefs that we are rationally required to give great weight to everyone else's well-being (since we believe that many wrong acts benefit the agent in ways that impose much greater burdens on others)

Cannot just be wrong to have a policy of killing people, and that it is sometimes permitted

- The main idea behind Kant's Law of Nature Formula is that even if wrong-doers could rationally act on certain maxims, they could not rationally will it to be true that everyone acts on their maxim
- Agent's maxim: Kant assumes that whether an act is wrong depends on some agent's maxim
 - Most of Kant's maxims involve some policy which could be acted on in several cases: two maxims may be different, though they involve the same policy, because they involve different underlying motive or aims – two merchants may both act on the policy “never cheat my customers” but one may do so out of duty while the other does so because it preserves his reputation and his profits
 - Kant's appeal to the agent's maxim raises various problems
 - A maxim is universal when everyone both acts on this maxim whenever they can, and believes such acts to be permitted
 - 
 ■ **Rarity Objection:** Suppose that I wrongly steal some wallet from some woman dressed in white who is eating strawberries while reading the last page of Spinoza's ethics – my maxim is to act in precisely this way, whenever I can → I could rationally will it to be true that this maxim is universal, because it is unlikely that anyone would ever be able to act in precisely this way
 - O'Neill's reply: we should not include any details whose absence would have made no difference to this person's decision to do whatever he is doing → simply unrealistic
 - But not very strong response
 - More serious problems: Consider the Egoistic Maxim – do whatever would be best for me – most egoists would not rationally choose to live in a world of egoist and so whenever he acts on his maxim, his act is wrong → not only when he steals and lies, but also when, for self-interested reasons, he pays his debts, keeps his promises, and saves a drowning child → but these are unacceptable conclusions
 - Reply: what he is doing is not wrong, but his doing of it is → Kant's distinction of duties of virtue: not only act rightly but with the right motive
 - But Kant also claims that we have many duties of justice, which we can fulfil by doing what is morally required, whatever our motive → one example is our duty to pay our debts → it is right to do so, even if the merchant's only duty is to preserve his profits
 - 
 ○ **Mixed Maxim Objection:** Some maxims are wholly bad or wholly good; but many maxims are morally mixed in the sense that, if we always acted on

these maxims, some of our acts would be wrong but other acts would be permissible or even morally required

- Examples: Egoistic maxim and Kant's maxim of "Never lie"
 - Some people believe that Kant's formula cannot provide a criterion of wrongness → suggest that Kant was not trying to provide such a criterion and only show that there is a deliberative presumption against acting in certain ways for certain reasons
 - But Parfit believes that Kant aimed to show that our acts are in one sense right or wrong when these acts conform with duty or are contrary to duty
 - Kant claims that his formula "determines quite precisely what is to be done...with respect to all duty in general" and that "common human reason, with this compass in hand, knows very well how to distinguish in every case what is good and what is evil, what conforms with duty or is contrary to duty"
 - Parfit's revision of Kant's formula
 - We must know all the facts of the situation which are morally relevant to assess the moral rightness of an act → Kant's formula often makes the answer depend on morally irrelevant facts → when my egoist risks his life to save some drowning child, it is irrelevant that he is acting on the policy of doing whatever would be best for himself
 - LN2: We act wrongly unless what we are doing is something that we could have done while acting on some maxim which we could rationally will everyone to act
 - Avoids the Mixed Maxims Objection: when my egoist saves the drowning child and Kant tells most people the truth, they might have been acting on maxims on which they could rationally will everyone to act → *not their actual maxim*
 - But this loses our partial answer to the Rarity Objection: I wrongly steal from a white-dress-wearing-strawberry-eating woman → what I am doing is something that I could have done while acting on a maxim of stealing from such and such a person, whenever I can → I could rationally will it to be true that everyone acts on this maxim, since such acts would at most be very rare
 - Parfit's suggestion of LN3: We act wrongly unless we are doing something that we could rationally will everyone to do, in similar circumstances, if they can
 - Moral Belief formula becomes: We act wrongly unless we could rationally will it to be true that everyone believes such acts to be morally permitted
 - Avoids the MMO: when my egoist saves the drowning child, and Kant tells someone the correct time, they could rationally will it to be true both that
- *not about why they are doing it*

everyone acts in these ways, and that everyone believes such acts to be permitted → so do not condemn

- Avoids Rarity Objection: we must describe this person's act in the morally relevant way → the maxim that I steal from a so-and-so person whenever I can does not provide the morally relevant description → it is irrelevant that I am stealing from someone who is a woman
 - This is because LN3 makes no reference to a "maxim" but on what I am doing
 - To give a morally relevant description of some act is to describe what the agent is intentionally doing → immediate aims
 - When it is unclear whether some fact is morally relevant, does not harm to include this fact in our description of some act → but when we apply certain moral principles to some act, it can be important not to include morally irrelevant fact
- Parfit: we no longer use Kant's concept of a maxim → when people act, there is often no policy on which these people are acting → if we used to word maxim to refer only to policies, we admit that there are many maximless acts → Kant's formulas must often use the word maxim to refer, not to some policy, but some morally relevant description of this person's act
 - Since Kant's formulas must often be applied directly to people's acts, it is hard to see why these formulas should ever refer to people's policies rather than their acts
- O'Neill: By appealing to the agent's maxim, Kant answers the question of what are the morally relevant descriptions of people's acts. But Parfit claims that this is not so → if all we know is that my egoist has acted on his maxim, we cannot possibly decide whether this man's act was wrong



What if Everyone did that?

- Kant's law of nature formula works best when it is applied to maxims or acts of which three things are true
 - It would be possible for many people to act on this maxim, or in this way
 - Whatever the number of people who act in this way, the effects of each act would be similar
 - These effects would be roughly equally distributed between different people
- Each-we dilemmas: we are often some members of a group of whom it is true that if each rather than none of us does what would be in a certain way better, we would be doing what would be, in this same way, worse
 - One large class are self-benefitting dilemmas like prisoner's dilemmas
 - Each of us could either benefit ourselves or give some greater benefit to others

- These greater benefits would be roughly equally distributed between these people
 - What each person does would have no significant effects on what the other person does
- If each of us benefits himself, each of us is doing what is certain to be better for himself, whatever the other person does → but if all rather than none of us act in this way, we are doing what is certain to be worse for all of us; none of us will get greater benefits
 - If each rather than none of us does what would be better for himself, we shall be doing what would be worse for each of us
- Also public goods game i.e. contributor's dilemmas
- Many each-we dilemmas do not involve choices between benefitting ourselves or giving greater benefits to others → such cases can arise whenever people have different and partly conflicting aims
 - For example, doing studying harder for an examination → it can be true that, if each rather than none of us does what will best achieve our own aim, everyone's aim will be worse achieved
 - Features in common sense morality M and our special obligations to children, parents etc
 - Parent's dilemma: each of us can benefit our own children, or give greater benefits to the children of others → if we all benefit our own children, then it will be worse for all children
- Moral solutions to each-we dilemmas
 - Act Consequentialists: we ought to always give greater benefits and hence do more good
 - Kantian solutions: if no one contributed to such public goods, that would be much worse for all of us than if everyone contributed. We could not rationally will it to be true that everyone rather than no one acts on the maxim 'Don't contribute'
- Free rider problems: free ride in the public goods game → unfair and what if everyone did that?
- For merely possible public goods, no one is free riding or failing to do their fair share
 - But Kant's Law of Nature Formula still implies that, in failing to contribute, everyone acts wrongly → we need to compare with a world in which everyone contributes, so that everyone gets these public goods, we could not rationally will it to be true that no one contributes, so that no one gets these goods → Kant's formula requires all of us to contribute
 - In unsolved each-we dilemmas, most of us believe that we are either permitted or required to give the smaller benefits to ourselves, or to some of our M-related people, rather than giving the greater benefits to others

- Kant's conclusion is harder to reject than the Act Consequentialist even though they are extensionally the same: in unsolved each-we dilemmas, each of us is trying to benefit ourselves, or our children, parents or other M-related people – when judged at the individual level, each of us succeeds, since each of us is doing what is better for himself, or for his children, parents etc. But we are doing what is worse for all these people
 - We are failing, or doing worse, even in our own terms, since we are making it true that everyone's morally required aims will be worse achieved
 - Acting on common sense moral principles, we are acting in ways that are directly collectively self-defeating
 - Kant comes close to giving such an argument: when Kant discusses the limits on our duty to benefit others, he writes, a maxim of promoting the happiness of others with a sacrifice of one's own happiness...would conflict with itself if it were made into a universal law
 - Kant must mean 'with a greater sacrifice of one's own happiness' → if everyone promoted the happiness of others at a greater cost of their own happiness, everyone would lose more happiness than gain
- Threshold objection
 - There are many maxims that it will be true that 'if too many people acted on this maxim, these people's acts would have bad effects, but when fewer people act on this maxim the effects are neutral or good'
 - One example is the maxim 'Have no children, so as to devote my life to philosophy' or 'become a doctor'
 - Pogge suggests that we should turn from Kant's Law of Nature Formula to his Moral Belief Formula
 - Though we could not rationally will it to be true that everyone acts on such maxims, we could rationally will it to be true that everyone believes such acts to be morally permitted → even if everyone believes such acts to be permitted, no danger that too many would choose to act in these ways → like people believe that it is permitted to become a doctor but not everyone becomes one
 - Parfit's reply: but if none of us produced food, we would be ending history more brutally → these are not merely consequences that we could not rationally will → it is not enough to say that even if we all had these false beliefs, there is no danger that too many of us would act in these ways
 - Pogge: many maxims are conditional → we intend to act in some way only when our acts have certain effects
 - "Produce no food as long as enough people are producing food"
 - Become a dentist → only if they could thereby earn a living

- Anyone is permitted to act on this conditional maxim, because everyone could rationally will it to be true that everyone believes such acts to be permitted
 - But there are also some unconditional maxims: Parfit says that of those who choose not to have children, the maxim that it is permissible for him to abstain is unconditional → but clearly, this is not something we could rationally will
 - Not a new objection: just like 'never lie', these are mixed maxims, on which it is sometimes but not always wrong to act
 - Parfit suggests that LN3 solves this (we act wrongly unless we are doing something that we could rationally will everyone to do, in similar circumstances, if they can)
- The Ideal World Objections
 - It may true that "if enough people acted in some way, these people's act would have good effects, but when fewer people act in this way the effects would or might be very bad"
 - Kant's Law of Nature Formula may require such acts even when they are clearly wrong
 - For instance, 'Never use violence' requires us to act on this maxim, since there is no other conflicting maxim on which we could rationally will everyone to act. If that were true, Kant's formula would require us never to use violence
 - But during war, you may be permitted not to be a pacifist
 - Korsgaard: Kant's standard of conduct is designed for an ideal state of affairs – we are always to act as if we were living in the Kingdom of Ends, regardless of possible disastrous results
 - Ideal World Objection: Kant's formula mistakenly requires us to act in certain ways even when, because some other people are not acting in these ways, our acts would make things go very badly, and for no good reason
 - Maxim (M1): Do whatever I could rationally will everyone to do
 - Maxim (M2): Do whatever I could rationally will everyone to do, unless some other people haven't acted in this way, in which case do whatever I could rationally will that, in these circumstances, other people do
 - Better maxim than Kant's for Never Use Violence: Never use Violence, unless some other people have used aggressive violence, in which case use restrained violence when that is my only possible way to defend myself or others
 - Kant's maxims can be reformulated

- Another problem: Kant's Law of Nature Formula merely permits us to act on better maxims → never use violence, unless some other people could have used aggressive violence, in which case kill as many people as I can
 - Passes: in the real world, some people have used aggressive violence; since this maxim passes Kant's test, Kant's formula permits the rest of us to act upon it, by killing as many people as we can
- M3: Do what everyone could rationally will everyone to do, unless some other people haven't acted in these ways, in which case do whatever I like
- New Ideal World Objection: Once a few people have failed to do what we could rationally will to do, Kant's formula ceases to imply that any act is wrong
- To answer this, we can reformulate the formula to go beyond asking whether we could rationally will it to be true that everyone acts upon it
 - LN4: It is wrong for us to act on some maxim unless we could rationally will it to be true that this maxim be acted on by everyone, and by any other number of people rather than by no one
 - For some maxim to pass this wider test, we must be able rationally to will that this maxim be acted on, not only by everyone rather than by no one, but also by most people rather than by no one, by many people rather than by no one, by a few people rather than no one, and by any other number of people rather than by no one.
- We must be able rationally to will that, whatever the number of people who don't act on this maxim, everyone else does
 - We give up the idea expressed in the question "What if everyone did that?" but this idea can be successfully applied only to certain kinds of case – in each-we dilemmas, if we are free riders who fail to contribute to some public good, we can be rightly challenged with the question 'What if everyone did that', but in many other cases, it is enough to reply 'Most people won't'
- Kant's moral belief formula appeals to a different idea, which might be successfully applied to all kinds of case → though we cannot plausibly assume that everyone ought to act on the same maxims, or in the same ways, we can plausibly assume that everyone ought to have the same moral beliefs
 - So when people object to one of our moral beliefs, saying 'What if everyone thought like you?' it is not enough to reply 'Most people won't' → if we could not rationally will it to be true that everyone believes some kind of act to be permitted, this fact might show some acts to be wrong

Wiggins' Universalisability, Impartiality and Truth

Summary: Moral judgements are essentially universalisable

- Key claim: Universalisability is (a) constitutive of the moral point of view itself, (b) founded in the logic or meaning of moral language and (c) such as to render substantive impartiality a logical requirement i.e. committing us to adhere to the strong principle that equal consideration is always to be given to equal interests, whoever these interests are and whatever our relation with or nearness/distance from the person who has these interests
- Key Question: Is it morally reprehensible in the pretheoretic sense for me to refuse to conform my conduct to judgements that are universalisable i.e. do universalisable judgements reconstruct what we recognise as moral requirements
 - Sufficiency or necessity?
- Background facts for moral language i.e. what a thing must be like if the morality and the institutions that embody it concretely are to support one another
 - In living together, human beings need to be able to see conflicts of interests as calling for arbitration by agreed procedures and as demanding the kinds of outcome that would not strike at parties as unfair
 - Human beings need norms of reciprocity and cooperation that can counteract the settled tendency of things to turn out badly rather than well
 - Human beings need such norms of reciprocity and cooperation not only to define canons of behaviour that can determine expectations, but also to embody principles of conduct that can take on a life of their own
 - Principles must perpetuate themselves by being seen as those who try to live by them as enshrining values and virtuous concerns that have a “moral beauty” all of their own i.e. must be reason giving
 - Whatever may be the origin of moral concerns and principles, unless it can become an end in itself to act in accordance with the claims of reciprocity etc and unless this can help to fill out the picture of what it is constitutively for things to go well and happily, the prospects are not good for the standard that requires these things (i.e. no consequentialism since its hard to specify the good)
 - Morality must safeguard and uphold arrangements that specially protect whatever is vitally or centrally important to the happiness or welfare of individual agents and must carefully proportion the protection it provides for an individual's interest to how central those interests are for the individual
 - The a social mobility must require of its participants some however minimal and delimited respect towards other participants i.e. as equally participants or a bearer of rights
- Relationship between adopting the moral point of view, or seeing one's own and others' conduct as answerable to such a point of view, and the requirement that one's moral judgements be universalised

- Kant on the intimate connection between moral agency and rational autonomy: it is equivalent to the question of whether adopting the moral point of view involves acting according to “not to act except on a moral judgement one can endorse (if only a judgement of permissibility), and not to endorse the moral judgement in favour of X-ing unless one could, simultaneously with intending to X, will that anyone in like circumstances should X”
- Strange results: “To release my debtor from his debt, as an act of simple generosity” would be convicted of a contradiction in conception
- Consistency in willing is also problematic since it imports a heteronomy that is in danger of subverting the whole foundation of the theory that morality stands apart from the empirical
- Must find an account of practical rationality that is non-empirical and desire-independent → but we must forgo Kant’s attachment to a conception of rationality that transcends the empirical and making heteronomy welcome
- Wiggins’s universalisability requirement: For me to endorse a maxim is for me to accept its suitability for being acted upon in any relevantly similar situation, including situations where my own position is quite different, and for me to accept this on a desiderative or modified desiderative basis. If I make the judgement that I ought to X, or that it is permissible for me to X, I must will among other things that I suffer the corresponding maxim’s being acted upon, even in the cases where I am in the position of those who now suffer by virtue of the maxim’s being endorsed and acted upon
 - If I find that my desires stand in the way of this willing, the judgement is not one that it is open to me to make so long as I hold the moral point of view i.e. we must consult and actively explore one’s empirically given desires in endorsing a maxim
 - He resists the idea that reason alone can generate substantive moral content, entirely free of desire; our **desires and concerns** are our only actual access point to what matters to us as agents.
- Two difficulties
 - Difficulty 1: other people have extremely different desires from yourself, adopting the moral point of view especially involves the recognition of alterity, the otherness of the subjectivity of others
 - Reply: Readiness to see the moral judgement acted upon even in the cases where my own desires are different from my present desires
 - Difficulty 2: I may be so utterly dedicated to my present projects and concerns that I am indifferent to what I in some imaginable positions should want or to feel
- Improvement: not to act except on a moral judgement whose maxim we are sincerely ready to endorse on *the basis of* the consideration of all positions

- Original suggestion was that we have arrived at the moral point of view just if we never act except on a moral judgement we can endorse, and we never endorse a moral judgement unless we will accept it for any relevantly similar situation in which our own position is as different as you please from the actual one
 - Test of acceptance is to try willing it while envisaging all hypothetical circumstances in which one has one's present desires and willing it while envisaging hypothetical circumstances in which one has the desires of the other person affected
 - The universaliser must at the very least move beyond the requirement that one act on maxims one is prepared to endorse while envisaging all positions and endorse on the basis of envisaging all these positions
- Now: considerations of each position must somehow impinge on the decision
 - Finding mutual accommodation for desires, interests or preferences as premorally conceived
 - Add a caveat: since desires, interests or preferences conflict, we must simply do the best we can
- To take the moral point of view is to obey: never act or judge except on the basis of a judgement you are ready to endorse, and never endorse a judgement unless you will the corresponding maxim on the basis of simultaneous hypothetical considerations of all positions, doing the best for all taken together
 - A maxim is endorsed if we should be prepared to accept it no matter whose position we were in, provided that in that position we were looking for a judgement that we should be prepared to accept no matter whose position we were in, provided in that position...etc etc
- Possibility of no maxim or that universalisers get different results
 - Wiggins's reply: if that is how it is, then we have simply not been told enough by the friends of the universalisation thesis about how to allow for the conflicting attitudes and preferences of others to do what is best for them
- Impartiality follows because we need to give equal weight to the considerations of those affected
 - BUT it does not mean that there can be no personal prerogatives because presumably people would endorse the maxim "care for your children because they are your children" because no matter which position you're in (provided that you were looking for a judgement we should be prepared to accept no matter whose position we were in), you would accept this
 - Agent-relativity compatible with a substantive impartiality

Winch's The Universalisability of Moral Judgements

Summary: Skeptical that moral judgements are essentially universalisable

- Sidgwick's thesis of universalisability: We cannot judge an action to be right for A and

wrong for B unless we can find in the natures of circumstances of the two some difference which we can regard as a reasonable ground for difference in their duties. If therefore I judge any action to be right for myself, I implicitly judge it to be right for any other person whose nature and circumstances do not differ from my own in certain important respects

- Two things when we think about hypothetical moral situations
 - To think about the moral decisions and actions of others, hypothetical or fictional, is to think about general moral issues
 - When I think about the moral decisions and dilemmas of others, it seems to me that I am very often asking "What would I think it right to do in such a situation" i.e. making a hypothetical agent's judgement of my own
 - Only a man who is himself a moral agent (capable of making his own moral decisions) is capable of making and understanding spectators' moral judgements about the actions of other people
 - Here, moral statements are analogous to statements of intention or pain: grammar of my attributions of intentions to others is quite different from that of my own expressions of intention but I have to understand the grammar of first person expressions of intention if I am able to make the ability to understand such third-person attributions and my ability to operate with such first-person expressions is an essential part of such understanding
- Winch accepts Sidgwick's thesis as applied to relations between judgements (my own and third person attributions)
 - If a man were to make different spectator's judgements of his own about the moral conduct of agents in situations which he agreed contained no relevant moral differences, then there would be difficulties understanding what he was saying
 - I.e. a spectator would make the same judgement as I did (given blah blah)
 - But Winch rejects that the man must say "And other people too, if they are to judge rightly, must make the same judgements as I have made concerning these situations"
 - Denies the universalisability principle which implies that other people must have judged the same as I have/endorse the maxim in the same way as a necessary condition for their right judgement
 - Winch advances a view that puts a certain class of first person moral judgements in a special position as not subject to the universalisability principle
- Problem from Dilemma: A position of the agent who is completely morally serious, who fully intends to do what he ought to do but is perplexed about what he ought to do and feels the force of conflicting moral demands on him

- Winch argues that when a man says “This is what I ought to do” there is nothing in the meaning or use of the word “ought” which logically commits him to accepting as a corollary “And anyone else in a situation like this ought to do the same”
- Denying only that in all cases, a man who refuses to accept such a corollary is thereby misusing the word “ought”
- Consider a case in which we are conflicted with military law demanding punishment and our own view that someone is innocent (perhaps because his act is accidental)
 - In one case, the military captain might view that his obligations to military law supersedes the moral demand of not punishing innocents; but if I were to find myself in this situation, I believe that I could have acted as the captain did i.e. judge it to be morally impossible to condemn an innocent man
 - According to Sidgwick, this would mean that I think the captain acted wrongly → but it seems that what the captain did for him what seemed to be the right thing to do
- Objection: anything goes
 - Reply: it is just that there are some cases where A says “X is the right thing for me to do” and B in a similar position says “X is the wrong thing for me to do” it can be that both is correct
 - It is not that if A believes that X is the right thing for him to do, then X is made the right thing for A to do by the mere fact that he thinks it is
 - Basically, the structure of morality allows for pluralistic conceptions of what is right and wrong to do in some cases

Part II: Alternative Deontology and its problems more broadly

Kamm, F.M. 2013. "Nonconsequentialism." In *The Blackwell Guide to Ethical Theory, Second Edition*, edited by Hugh LaFollette and Ingmar Persson, 261-286. Oxford: Blackwell.

- Nonconsequentialism denies that rightness or wrongness of our conduct is determined solely by the goodness or badness of the consequences of our acts
 - Does not deny that consequences can be a factor in determining the rightness of an act
 - It claims that it is possible that when the consequences of two acts are the same, one might be wrong and one might be right
- Kant's legacy: (i) categorical imperative and (ii) perfect and imperfect duties
 - Categorical imperative: humanity formula where we ought to treat people as ends in themselves, and has unconditional value independent of a particular context
 - Perfect and imperfect duties: Kant is an absolutist when it comes to negative duties but contemporary nonconsequentialists deny the absolutist conception of perfect duties, but do accept that the class of negative duties (not to harm) is more stringent than the class of positive duties (e.g. to aid)
- Ross: a plurality of prima facie duties
 - Contemporary nonconsequentialists have tried to strengthen Ross's view by more precisely determining the relative weights or ordering prima facie duties
- Contemporary nonconsequentialism: includes personal prerogatives not to maximise the good and constraints on producing the good
 - A prerogative denies that agents must always maximise the good and allows for the possibility of supererogatory acts → while these acts are not morally required, they are morally valuable in virtue of producing better consequences
 - Constraints limit what we may do to nonconsenting people, who pose no threat and are not responsible for threats
 - Partial nonconsequentialists might advocate prerogatives but no constraints (Scheffler) or constraints but no prerogatives (Kagan)
- Constraints
 - Commonly proposed: (i) a strong duty not to harm owed to each individual and a correlative right not to be harmed (contrast with a weaker duty to aid), and/or (ii) a prohibition against intending harm (contrast with a weaker duty not to cause or allow harm that is merely foreseen)
 - However, simple constraints fail to capture important moral complexities that arise from moral dilemmas (i.e. Trolley Case) → need to specify the precise way in which an individual is thought to be inviolable i.e. protected by a negative right not to be harmed even if the harm would maximise the good

- Threshold deontology: constraints may be transgressed to produce a sufficiently great good
- Prerogatives
 - Permit an agent to (1) act in ways that do not maximise the impartial good and (2) act for reasons that stem from his personal perspective, rather than from the perspective of an impartial judge
 - Cannot just be a constant factor that each agent can multiply the weight of his personal concerns by: we need to distinguish between personal projects that ought to be given more weight (caring for friends, children) from trivial projects (which would wrongly outweigh vital needs of others)
 - Furthermore, a true prerogative gives the option to care less for himself than for others as well, and so cannot just be “maximising the good”
 - Prerogatives represent a concern for one’s autonomy rather than the importance of one’s own project from one’s own perspective
 - Scheffler: justifies prerogatives by claiming that humans are psychologically predisposed to be most concerned about their own projects. Hence, if they are morally permitted to pursue their nonoptimific projects for personal reasons, they will not be alienated from their fundamental natures
 - Does not morally limit others from interfering with someone in their quest to maximise the good: only implies that someone need not always act of his own accord for impartial good for impartial reasons
 - Nonalienation justification suggests agents should be permitted to try to control what they care about most (but I should not be able to control someone else's life merely because that is what I care about most)
 - A theory of prerogatives must specify from an impartial perspective about what we are entitled to control from a partial perspective → connect prerogatives with constraints
 - Others justify by appealing to consequentialism’s demandingness: but this is problematic since nonconsequentialism can also be very demanding
 - Why should agents have to sacrifice projects to avoid violating constraints?
 - Persons as ends in themselves: since we should not view people as mere means of promoting the greater good, each of us can sometime justifiably pursue nonoptimific goals
 - Personal sovereignty: foundation of prerogatives can also be the foundation of constraints on interferences
- Harming vs nonaiding
 - Nonconsequentialists: strong moral constraint against harming people who pose no threat and are not responsible for threats

- Consequentialist's Equivalence Thesis: no intrinsic moral difference between harming and not-aiding
 - We may generally harm to aid
 - Need to show more than one set of comparable cases of harming and not aiding, holding all else (like intention) equal, yields the desired intuition
 - Principle of Contextual Interaction: a property can behave differently in one context than in another
- Rachels' Bathtub Case to prove the Equivalence Thesis: (1) Smith will inherit a fortune if his little cousin dies. One evening while the child is taking his bath, Smith drowns him. (2) Jones will inherit a fortune if his little cousin dies. When Jones enters the bathroom, he sees that the child slipped and fell face down in the water. Although Jones could easily save the child, he does nothing, intending that the child die
 - Kamm: it might be permissible to kill Smith but not Jones → both morally wrong but not to the same degree
- Kamm's Road Case as an objection: (1) if we drive down one road, we will kill someone who cannot move out of the way. The alternative is to go another way that would risk hurting ourselves, (2) we know that to save someone from drowning, we must go down the alternative road that we face the risk of hurting ourselves
 - The agent is obligated to face a larger personal risk to avoid killing than to avoid letting die
 - Why: (1) in killing we introduce a threat that was not previously present, (2) in killing we act, while in letting die we fail to act/refrain from acting, (3) in killing we cause someone to lose life that he would have had independently of our actions at that time; in letting die someone loses only life that he would have had with our help at that time; and (4) in killing we interfere first with the victim while in letting die with avoid being interfered with (by having to aid)
 - Must consider only features that are essentially true of either killing or letting die
- Kamm: moral distinction between killing and letting die captures the view of separate persons
 - The victim only loses only life that he would have had with the agent's help at that time and that the agent prevents his being imposed on first
 - But these properties can be morally important only if we have a stronger claim than others do to what we have independently of the current aid of others when the aid does not merely counteract their

initial threat, and this stronger claim applies both to our life and to the efforts we could make on behalf of others

- Principle of Permissible Harm: it is permissible for (1) greater good and (2) means that have greater good as their noncausal flip side to cause lesser evil, but not permissible for an act (3) to require lesser evil (or someone's involvement leading to lesser evil) as a means to greater good, or (4) to directly cause lesser evil as a side effect when the act has greater good as a mere causal effect
 - Goal: want to look for a principle that explains why it is permissible for a bystander and/or for someone driving the trolley to help several people by redirecting a fatal threat so that it kills someone else, yet it would be impermissible to kill one person to harvest his organs to save another
 - Must also explain why some things we could do to stop the trolley i.e. pushing an innocent heavy onlooker into its path are as impermissible as harvesting someone's organs
 - Current explanations: (1) we merely foresee the death of the one when redirecting the trolley but intend the death in the other cases, (2) in Trolley, we do not initiate a new threat and redistribute a preexisting threat
 - But the combination of (1) and (2) cannot be a sufficient condition for acting permissibly: if a trolley is headed towards one person, we may not redirect it foreseeing it will kill five, even if we do this because the redirection also moves a rock that saves twenty people from another threat
 - (2) may not be necessary either: we may turn the table on which 5 people are seated upon to save them from the trolley, but start a rock slide which will kill one innocent bystander
 - "Noncausal flip side" signifies that the greater good occurring is, in essence, another way of describing the situation in which the means occur
 - Denies that we may never cause serious harm to people who need not volunteer for such harm, in order to aid others
 - When harm is an effect of achieving a greater good, we may permissibly do what harms e.g. by directing gas into a room we can save 5, but as a result of saving the 5, their breathing alters the airflow in the room and redirects germs and kills the innocent person → in this case, it is permissible to use the gas to save five people, because it is the greater good itself that causes the death
 - In the trolley case, killing the one as a means to saving the five → this greater good is its noncausal flip side i.e. given that the moving away occurs in a context where no other fatal threat faces the five, the five's being saved just is the trolley moving away
 - Our act of turning the trolley, which ultimately leads to harm, is permissible because it produces the harm only by producing



a means (the moving trolley) that has greater good as its noncausal flip side

- So the one's harm happens **because** of the trolley's movement, but the five's being saved is not produced *through* the one's being harmed. It is produced by the very same redirection that also (unfortunately) brings harm as a side effect.

not subordination

- Justifying PPH: gives expression to a moral distinction between substitution and subordination of persons i.e. it is sometimes permissible to substitute a person for others so that the substituted person is threatened instead of the original person



- Contrasts with subordinating one person to others, as occurs in the Transplant case
- Such substitution that leads to harm is permissible only when it is caused in certain ways i.e. As a result of greater good causing lesser evil

- Principle of Secondary Permissibility

- PPH implies that inviolability is limited
- E.g. it is impermissible to push an innocent onlooker into a trolley that will amputate his leg in order to save five people from the trolley's killing them.

→ greater good is produced through his death

However, suppose that the alternative is to redirect the trolley away from the five and toward that very same person killing him. Redirecting it toward him would ordinarily be permissible and is, suppose, something we would do if we would do nothing else. However, since it is in his interest to lose his leg rather than be killed and both are against his will, secondarily, it becomes permissible

- To push him into the trolley, an action that was not, in the first instance, permissible
- Why might we not violate PPH to minimise overall violation
 - Objectors: worse from each agent's perspectives in which he kills one person than in which another agent kills more people
 - But why do we give our current actions and consequences more weight than future or past consequences?

- Artworks: If someone loves beauty, he will be disposed to preserve and not destroy artworks. But to prevent more artworks from being destroyed, it is permissible for him to destroy one artwork

- Constraints on harming persons is not derived from inside the agent out, but from outside her in because the constraints reflects the kind of entity that she would act on – a person, not a work of art

- Victim focused rights based account of constraints: inviolability is a status and defines what we can permissibly do to people rather than what actually happens to them

- If 5 are killed because A is not killed, morality does not endorse their being killed
- By contrast, if it were permissible to kill A to save 5, the inviolability of all six would be lower
- Advantage: it does not focus on what I do rather than what others do – the fact that if I kill someone, I would be acting now and the victim would be mine does not play a pivotal role in explaining why I must not kill him
 - His right, not my agency, constitutes the moral constraint: the fact that the other five have this same right does not diminish the constraint against violating the one's rights that I come up against
- Agent neutral value of high inviolability of persons: each agent must respect this value and does so in being constrained by the rights of the first person he encounters, even though the identity of this person differs for each agent
 - Self-defeating for it to be permissible to violate a strong right, in order to stop comparable rights violations
 - If one person may be sacrificed, then others may also in the appropriate circumstances be sacrificed and this lowers their overall status
- Nonabsoluteness of constraints
 - Even if constraints might be legitimately overridden to achieve some greater good, this need not imply that they may permissibly be overridden in pursuit of person goals – not even if the pursuit of those same goals legitimise failing to pursue the greater good
 - Intransitivity Thesis: Let $>$ denote may permissibly override. Then, prerogatives (P) $>$ the greater good (G) and G $>$ constraints (C) but it is not true that $P > C$
 - We might permissibly break a promise even if saving the thousands of lives is supererogatory because the sacrifice required of us to save them is greater i.e. $G > C$ even if $P > G$
 - Nevertheless, we might be required to suffer grave personal loss to respect the constraint (e.g. the bodyguard might have to endanger her life to keep her promise). Hence it is not true that $P > C$
 - Constraints are minimum standards we must all meet: we may be required to sacrifice our personal goals to meet these standards, but not to go beyond them
 - The proper solution is not to “personalise” the loss of G (i.e. someone might violate C for G even if she cares more about C than to bring about G) but for the agent to understand that promoting the greater

good is (impartially) morally more important than respecting the constraint

Rossian Deontology

McNaughton, David, and Piers Rawling. 2007. "Deontology." In *Oxford Handbook of Ethical Theory*, edited by David Copp, 424-458. Oxford Oxford University Press.

Basic features of deontology

- Constraints: there are general prohibitions (rather than proscriptions) over what we may do that constrains our pursuit of the good
 - Some deontologists say they may be overridden to avoid catastrophe
 - All in, it is sometimes our obligation to not maximise the good
- Duties of Special Relationship: requires certain obligations of us to those to whom we stand in such relationships
 - Often due to the underivative value of such relationships
- Options: allows for supererogation i.e. the ability to decline to do more (charity)
 - Consequentialism leaves no conceptual space of supererogation
- Agent-relativity: includes reasons that refer to the agent themselves
 - Simple Consequentialism is agent-neutral
 - I.e. utilitarianism says each of us has a reason to pursue the common aim (of maximising the common good) while egoism says that each of us has a distinct aim to pursue our own welfare
 - I.e. under deontology, we have reasons to fulfil our own distinct duties of parental care because the fact that she is my daughter gives me special moral reason to further her interest (I am required to care for my family and you for yours); under consequentialism, we have the common aim of promoting parent care-giving, which requires that I neglect my own children if I can increase the total amount of parental care-giving
 - Constraints are agent-relative: suppose I can only prevent you killing two innocents by killing one myself. Deontology who advocate an absolute constraint against killing the innocent would forbid my killing the one since I have an overriding moral reason not to kill anyone *myself*

Rossian Deontology

- Basic Thrust: unlike Scanlon and Kant who see moral principles as resting on some common foundation, Ross sees a set of distinct underivative agent-relative moral considerations, which he considers a list of basic principles or duties. These duties are only pro tanto duties, and they can come into conflict
- Deriving principles: if a consideration is fundamentally morally relevant in one case, it is relevant in the same way in all cases

- E.g. if we have a fundamental prima facie duty not to harm, then the fact that an act will cause harm is invariably a moral reason not to do it, though not necessarily a decisive one
- Ross thinks that a feature of an action is fundamentally relevant only if it has a moral valence (positive or negative) essentially and does not vary; many other features of actions are only derivatively relevant
 - E.g. that it is Tuesday is morally relevant if I promised to do something for you on Tuesday, but its relevance derives from the content of my promise
- McNaughton: should consider basic moral considerations in that whether a feature of an action counts, its moral force is underivative
 - Such basic moral considerations may still be conditional on other features: promises extracted by fraud or force are null and void as are promises to do something immoral
 - The duty to keep promises is not derivative (but duty to keep the promise on Tuesday specifically is derivative from the duty to keep promises) because there is no more basic moral reason that explains why
 - Ross can address this concern by adding relevant conditions to the consideration to achieve relevant conditions e.g. by saying Promises that are not generated by fraud or force and to do something immoral
- Challenges to Rossian Deontology from alternative deontological foundations
 - Objection #1: appeals solely to our reflective convictions, so how do we reply to those whose reflective moral beliefs differ significantly from ours
 - Objection #2: moral considerations may not be considered moral reasons i.e. morality must have intrinsic reason giving force
 - E.g. in Mill's utilitarianism, we have reason to pursue the general welfare of all because individual happiness is good for one person, so overall happiness is good for all persons; in Kant's deontology, it is irrational to act on a maxim that could not be universally adopted
 - Objection #3: No algorithm difficulty to resolve disagreements about what is right, because people cannot agree about the weight to be given to competing considerations and because there are disagreements about how to apply a principle
 - E.g. we may agree that harming others is pro tanto wrong but disagree about how this weighs against other considerations in a particular case and about what constitutes harm
 - Objection #4: there is no unifying foundation and Ross gives an irreducible list of disparate fundamental considerations
- Resolving these Challenges

- Against the Kantian alternative: while it satisfies most of the objections namely, (i) it meets the challenge of diverse moral views because the test of rightness is a purely formal test i.e. what can only be willed without contradiction, (ii) it meets the reason challenge by claiming it would be irrational to act on a maxim that could not be universally adopted, (iii) it avoids the problem of no foundation because all imperatives are instances of a more general categorical imperative and (iv) it surmounts the no algorithm difficulty by claiming that certain kinds of considerations are decisive i.e. not to lie or kill the innocent, it achieves all this at a high cost (see Parfit's analysis) of giving us counterintuitive results like it is wrong to lie even to save a life
 - I don't think it even surmounts (iv) given conflicting absolute considerations
- Defending Rossian Deontology from Consequentialism
 - Special Relationships: Rossian deontology allows for underivative agent-relative moral obligations i.e. owing respect to your parents because they are your parents
 - Common sense concurs with deontology and consequentialism deny the existence of agent-relative, underivative, moral obligations (they may deny agent-relativity or underivativeness)
 - Sophisticated C: assuming a disposition to be loyal to those for whom one has special affection forms part of the motivational set that produces the best result and so virtuous agents are disposed to act loyally, even in circumstances when disloyalty produces the most good. By Sophisticated C's lights, loyal action in such circumstances is wrong and thus rules out moral obligations to friends, except when they maximise the good
 - Motive Consequentialism: one is permitted not to maximise value if that failure is in accordance with the best motivations. But the reason for why someone being her friend has moral significance is one that has to do with the general good. It acknowledges that nonoptimific acts need not be wrong, but fails to capture friendship because it maintains that preferential treatment of friends can be justified only by appeal to the general good
 - Self-effacing consequentialism: we may falsely believe that there are genuine reasons of loyalty, but this debars us from being robust practical reasoners since we remain ignorant of our fundamental practical reasons → may not be incoherent, but still bears theoretical costs since it is less plausible that adept practical reasoners could be generally mistaken about their practical ends → Rossian deontology

need not bear such theoretical costs and gives us a straightforward account of our obligations towards friends

- Special obligations are not objectionably partial since we are not giving the claims of persons or groups more weight than we are warranted in doing → different theories all respect the need to be impartial, but offer competing conceptions of what features are relevant in assessing whether one person's claim is weightier than another's
- Rossian Deontology allows us to accept that friendship is valuable, but our reasons to favour our own friends do not derive from these → that you could do better to abandon your friends does not furnish you with sufficient reason to do so
- Rossian takes duties of special obligations to be fundamental (may not be inexplicable) → as fundamental as the consequentialist proposition that happiness is good
- But Ross thinks that there is a duty to be beneficent provided that one is not subject, in the circumstances, to more stringent duty. Hence, all reasons to favour friends must be moral, lest they carry no weight against the duty to be beneficent. On McNaughton's view, there is a duty to be beneficent on occasion, but it is not pervasive and there is room for nonmoral reasons to favour friends
- Options: we want to say that each person has special reason to pursue her own benefit and special projects
 - Consequentialism says that one only has reason to pursue her own benefit insofar as its pursuit will contribute to her maximisation of the general good and this is not a special reason that she has and others lack
 - Each person has a special personal reason to care about their own interests and concerns just because they are ours; personal reasons would be to give each agent moral permission (the option) not to maximise the good when the cost to her would be significant → an agent is allowed, in determining what she ought to do, to accord greater weight to the cost borne by her than is warranted by its impersonal disvalue
 - Since I am a creature with a personal point of view, a morality that requires me to transcend that point of view and think of the world as if I had no particular place in it would not only be demanding but would also deny all moral significance to the fact that my life is, in a sense, all I have
 - All consequentialism fails on the explanatory count: even if they encourage us to develop dispositions to do wrong but to pursue

personal projects, it does so only to bring about better-long term results, and deny the moral significance of personal reasons at the fundamental level

- Constraints: McNaughton advocates for a deontology without constraints given the standard objection of constraints forbidding their own violation even to minimise such violation e.g. killing X to prevent the X from killing 5 others
 - Proscriptions: prohibitions that may be violated to promote the good i.e. absolute prohibition against killing another person purely for personal gain → not a constraint since violating it (i.e. killing for personal gain) is not a good reason to kill someone and it does not increase the good
 - Constraints are proscriptions that admit the possibility of, and forbid, their violation to increase the good
 - Constraints cannot be justified via appeal to positional facts (the good accrues to my friend or me) and cannot be justified by saying their violation is bad, given that we cannot minimise their violation
 - But it can be justified through a single positional fact: that violating it, even to prevent worse actions by others, is a bad for me → but although such a violation may matter to me (perhaps because I might have a reluctance to get my hands dirty), this at best my ground a permission, but not a requirement, not to violate the constraint under these conditions
 - Defence #1: Constraints embody a fundamental fact of my agency and I should not aim directly at someone's death myself, even when my ultimate goal is to thwart similar aims of others
 - Defence #2: Kantian line that persons deserve respect in view of their unique importance as moral agents, and that we owe particular duties to others in view of our special relationships with them, so we owe everyone else a duty not to harm them because of our general relationship with them
 - But it is not clear what this relationship is: being fellow humans, or fellow persons
 - Even if this can be answered, it does not answer why our standing in that relationship grounds a constraint against harming them, as opposed as a duty to minimise harm
 - Even if we deny constraints, we can retain much of our intuitions: we can employ proscriptions that are acceptable i.e. bans on doing things for inappropriate reasons, and many of our intuitions that appear to be based on constraints are actually based on other features i.e. to think it is wrong to take \$10 from one person in order to enrich

another by \$20 may prima facie be thought of as due to a constraint against stealing, but our grounds for that might be that the harm of taking \$10 honestly possessed outweighs the benefit of bestowing \$20 unearned

- Relationship between no constraints, special obligations and options: suppose there is a constraint against interfering with another's pursuit of his friendship. Then I am forbidden to interfere with your friendships even to prevent much greater interference by someone else. It seems more plausible to maintain that noninterference itself is valuable; so that in addition to the general value of your friendships and worthwhile pursuits, there is an additional reason for my noninterference, but this protection is not absolute
- Kagan's objection against options without constraints: suppose there is an option to forego saving the life of a stranger if it will cost you \$10,000. Then why are you not permitted to kill a stranger to gain \$10,000. If the former seems reasonable and the latter not, then incorporating the first means incorporating a constraint against killing. Further, if one notes that it is not a constraint against killing simpliciter that is required, but an acceptable ban against killing for personal gain, one must face the issue of why there is not also an acceptable ban against refusing to save the life of a stranger for selfish reasons
 - Reply: (i) killing may be in itself worse than not saving, (ii) there may be a morally relevant difference between donating a sum of significance to you and not gaining that sum, (iii) in the case of killing, you would be solely responsible whereas in the case of not saving, you would typically share responsibility with all the others who count have contributed but didn't
 - There may be relevant differences between harming and failing to prevent harm or gaining a benefit and saving oneself from a cost that disrupt the purported analogy